

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502894	RICK'S PATIO, INC. VS MARINE AIR LAND INTERNATIONAL SERVICES LLC	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

SUSTAIN the demurrer to the first cause of action for negligence with 30 days leave to amend. Plaintiff has alleged sufficient facts to state that Defendant owes Plaintiff a legal duty of care, but Plaintiff has insufficiently pled damages. Plaintiff only claims economic damages for its negligence cause of action. (SAC, Para. 24; Prayer, Nos. 1-3.) Plaintiff's Opposition to the Demurrer does not address Defendant's argument that Plaintiff is only seeking economic damages; hence, Plaintiff has failed to state sufficient facts to give rise to a cause of action for negligence arising from Defendant's alleged breach of contract.

OVERRULE the demurrer to the second and third causes of action.

Breach of Fiduciary Duty

By alleging that Defendant was Plaintiff's customs broker (Second Amended Complaint (SAC), Para.9.), Plaintiff has alleged sufficient facts to support that a fiduciary relationship existed between the parties and that Defendant owed a fiduciary duty to Plaintiff. Whether the fiduciary duty was breached is a question of fact that cannot be decided upon a demurrer.

Breach of Contract

Plaintiff sufficiently alleges that Defendant agreed to ensure that correct tariff applications would be filed, and that Defendant breached its agreement by filing "incorrect paperwork" that led to the imposition of unnecessary tariffs. (SAC, Paras. 10-12.) Plaintiff has alleged sufficient facts to state a cause of action for breach of contract against Defendant.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2502894	RICK'S PATIO, INC. VS MARINE AIR LAND INTERNATIONAL SERVICES LLC	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling:

GRANT the motion to strike Plaintiff's request for attorney fees in the SAC, Prayer No. 2. There is no fee authorized by contract, statute, or law that would entitle Plaintiff to attorney fees. Plaintiff is entitled, however, to seek costs.

GRANT, in part, the motion to strike Plaintiff's claim for prejudgment interest to the extent that it relies on non-contractual damages that cannot be resolved except by verdict or judgment. DENY, in part, the motion to strike Plaintiff's claim for prejudgment interest as it relates to liquidated damages (Civ. Code § 3287(a)) and unliquidated contract claims (Civ. Code § 3287(b)).

DENY the motion to strike the term "unnecessary tariffs", the amount of damages claimed (\$209,891.58) and allegations of "gross recklessness and wanton disregard" from the SAC.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2507426	GARCIA VS FCA US LLC	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

This matter has been continued from May 4, 2026, for Plaintiff to file a sur-reply that addressed the Economic Loss Rule under the fraud claim in the First Amended Complaint (FAC). Plaintiff has not filed a sur-reply as of 6/24/26.

SUSTAIN the demurrer to the 5th cause of action for negligent repair with 30 days leave to amend. The FAC avers that the Dealership "breached its duty" by "failing to properly store, prepare and repair the vehicle in accordance with industry standards." (FAC, Para.112.) The FAC also alleges that the breach was the proximate cause of Plaintiffs' damages (FAC, Para.113.), but Plaintiffs fail to plead the nature and extent of their damages. The claim fails to sufficiently plead damages.

OVERRULE the demurrer to the sixth cause of action for Fraudulent Inducement/Concealment.

Under *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 and *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the Plaintiff's fraud claim is not barred by the Economic Loss Rule. Plaintiff has sufficiently alleged that the parties entered into a contractual arrangement, showing the existence of a transactional relationship between the parties, and imposing a duty of disclosure upon FCA.

8.

CASE #	CASE NAME	HEARING NAME
CVRI2507426	GARCIA VS FCA US LLC	MOTION TO STRIKE

Tentative Ruling:

DENY

Plaintiff has sufficiently pled a claim for fraudulent concealment, and hence he is entitled to request punitive damages.